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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

Reserved on	20.08.2026
Pronounced on	01.09.2026

CORAM

THE HONOURABLE MR. JUSTICE A. D. JAGADISH CHANDIRA
and
THE HONOURABLE MR. JUSTICE B.MURUGESAN

Crl.A(MD) No.561 of 2024

Kamalkanth ... Appellant

vs.

The Inspector of Police,
Musiri Police Station,
Trichy District
Crime No.45 of 2020 ... Respondent

Criminal Appeal filed under Section 374(2) of Cr.P.C., to call for the records relating to the judgment in SC No.01 of 2021 dated 30.04.2024 on the file of the Sessions Judge, Mahila Court, Tiruchirapalli set aside the same and allow this appeal.

For Appellant : Mr.M.Subash Babu
Senior Counsel
Assisted by Mr.K.Sathish Kumar
M/s.Subash Law Office

For Respondent : Mr.G.Karuppasamy Pandian
Counsel for State of Tamil Nadu
(Crl.Side)

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J U D G M E N T

A.D.JAGADISH CHANDIRA,J.

The instant criminal appeal is filed by the sole accused (hereinafter respectively referred to as "the appellant") seeking to set aside the judgment of conviction and sentence dated 30.04.2024 passed by the Sessions Judge, Mahila Court, Tiruchirapalli (hereinafter referred to as "the Trial Court") in SC No. 01 of 2021 (hereinafter referred to as "the impugned judgment").

2. *Vide* the impugned judgment, the Trial Court convicted the appellant and sentenced him as tabulated below:

Penal Provision	Imprisonment	Fine amount
498(A) of IPC	Three years rigorous imprisonment	Rs.3,000/- in default of which to undergo three months rigorous imprisonment
302 of IPC	Life Imprisonment	Rs.7,000/- in default of which to undergo six months rigorous imprisonment
Period of detention already undergone by the appellant was ordered to be set off and the sentences were ordered to run concurrently.		

3. The case of the prosecution, in a nutshell, is as follows;

3.1. One Subramani (hereinafter referred to as "the defacto complainant (P.W.1)") was residing at Pullampadi @ Manakkadu Village, Lalgudi Taluk. The

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defacto complainant (P.W.1) is the father of one Jeevitha (hereinafter referred to as "the deceased"). One Kamalkanth (hereinafter referred to as "the appellant") was residing at No.46, Azhagapatti Road, Parvathipuram Musiri. The marriage between the appellant and the deceased was arranged and solemnised on 06.06.2019. The defacto complainant (P.W.1) gave 56 sovereigns of jewels and other articles as "seethana" including a car to the deceased for her marriage. The appellant was working in Singapore before the marriage and after the marriage, he was unemployed. Therefore, the deceased questioned the appellant as to him not going for a job and thereby there were frequent quarrels between the said couple. The appellant had demanded Rs. 4,00,000/- for seeking a job opportunity in Singapore and thereby he also threatened to kill the deceased if his demand was not complied with.

3.2. During the pongal festival, the defacto complainant (P.W.1) visited the appellant and the deceased at their matrimonial house and greeted them with 'pongal seethana'. Further, since the deceased was pregnant, the defacto complainant (P.W.1) had once again visited the appellant and the deceased on 31.01.2020 and during such visit the deceased expressed her willingness to return to the defacto complainant's house. However, the defacto complainant (P.W.1) informed the deceased that he would come back after, two to three days to take her to his house. Before he could do so, the defacto complainant (P.W.1) received a call from the deceased at about

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8:00AM on 04.02.2020 whereby she stated that the appellant threatened her to arrange for the money to enable him to go to Canada and thereby she had requested the defacto complainant (P.W.1) to arrange for the money. While so, amidst their quarrel, the appellant pushed the deceased on the cot in their bed room and stabbed her on the left side of her neck with a knife used to cut fruits and thereby inflicted a fatal injuries to the deceased, resulting in her death.

3.3. Upon murdering the deceased, the appellant had informed the Head Constable of Police (P.W.18) who had arrived at the place of occurrence and informed his superior officers. Thereupon, the appellant informed the "108 Ambulance Call Line" and thereby the ambulance driver (P.W.16) arrived at the place of occurrence. On observing that the appellant had suffered a bleeding injury to his hand and that his wife the deceased was dead, the ambulance driver (P.W.16) took the appellant to the Musri Government Hospital for emergency treatment. Dr. Ramesh (P.W.15) on examining the appellant, issued an accident register (Ex.P10) noting cut marks on the medial side of the left forearm and a lacerated linear injury on the left elbow region. Based on the noted injuries, Dr. Ramesh (P.W.15) issued a wound certificate (Ex.P11) opining that the injuries were simple in nature.

3.4. On the other hand, the Head Constable of Police (P.W.18) called the defacto complainant (P.W.1) from the appellant's mobile phone at about 10:30 AM

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and enquired with the defacto complainant (P.W.1) whether he had gifted a car to the deceased and informed him that the deceased was serious. Hence, the defacto complainant (P.W.1) thought that the deceased could have met with an accident and thereby immediately went to the appellant's house and on hearing about the occurrence preferred a complaint (Ex.P.1) with the Sub Inspector of Police (P.W.23). Based on the complaint (Ex.P.1), the Sub Inspector of Police (P.W.23) registered a FIR (Ex.P.16) in Crime No. 45 of 2020 for the offences under Sections 302 of IPC at about 12.00 PM on 04.02.2020. Upon registration, the Sub Inspector of Police (P.W. 23) forwarded the complaint (Ex.P.1) and FIR (Ex.P.16) to the Judicial Magistrate, Musri and thereafter handed over the case to the Inspector of Police (P.W.26) for investigation in Crime No. 45 of 2020.

3.5. On the same day, the Inspector of Police (P.W.26) took up the case for investigation, visited the place of occurrence at about 12:45 PM and prepared the rough sketch (Ex.P.19) and observation mahazar (Ex.P.20) in the presence of the independent witnesses Govindaraj (P.W.12) and Lakshman (P.W.13). Inspector of Police (P.W.26) recovered a blood stained tile (M.O.5), an unstained tiles (M.O.6), a blood stained mattress (M.O.7) and an unstained mattress (M.O.8) under a seizure mahazar (Ex.P.21). Upon recovery, the Inspector of Police (P.W.26), examined the independent witnesses and recorded their statements. Thereafter, the Inspector of Police (P.W.26), also examined the defacto complainant (P.W.1), Kannammal (P.W.

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2), Maruthamuthu S/o. Palaniyappan (P.W.3), Raja (P.W.4), Maruthamuthu S/o. Subbu Konar (P.W.5), and Maniraj (P.W.6) and recorded their respective statements.

3.6. Following which, the Inspector of Police (P.W.26) conducted an inquest oat about 2:45 PM on the same day in the presence of the panchayat witnesses and prepared an inquest report (Ex.P22). After doing so, the Inspector of Police (P.W.26) examined the panchayat witnesses and recorded their statements. Upon examination thereof, the Inspector of Police (P.W.26) sent the body of the deceased for postmortem examination along with the requisite requisition through the Gokila (P.W.21) to the Musiri Government Hospital. On arrival, at the Musri Government Hospital, Dr. Ramesh (P.W.15) conducted a postmortem examination of the body of the deceased and issued a postmortem certificate (Ex.P12) observing (1) linear cut injury in the centre of the neck, 6 cm below the chin, extending from the left side of the neck towards the right side of the neck measuring 9 cm x 3 cm x 3.5 cm (2) fully cut trachea, 1 cm below the hyoid bone region (3) cut blood vessels, tendons and nerves nearby the hyoid region (4) clot over the injured trechea (5) lacerated injury 1 cm x 1 cm x 1 cm on the right side of the neck. Further, Dr. Ramesh (P.W.15) preserved the viscera i.e.,internal organs and sent the same for chemical analysis. On the other hand, the Inspector of Police (P.W.26), sent a requisition to the Cyber Crime Branch, Trichy and obtained the call data record (Ex.P.17) of the deceased, the defacto complainant (PW.1) , the Head Constable (PW18)and the appellant.

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3.7. Based on the investigation, at about 5:00 AM on 05.02.2020, the Inspector of Police (P.W.26) arrested the appellant near the Musiri Bus Stand and recorded his voluntary confession statement (Ex.P.8) in the presence of the Village Administrative Officer (P.W.14) and the Village Assistant (not examined). Based on the confession, at about 6:45 AM, the Inspector of Police (P.W.26) recovered a blood blood stained knife (M.O.1), a blood stained dhoti (M.O.2), a blood stained black color pant (M.O.3) and a blood stained grey color t-shirt (M.O.4) under a seizure mahazar (Ex.P9) from a bush situated nearby to the house opposite to that of the appellant's house. Following the recovery, the appellant was sent for judicial remand. Further, the Inspector of Police (P.W.26) handed over the body of the deceased to the defacto complainant (PW.1) and recovered a blood stained maroon color nighty (M.O.9), a blood stained black color vest (M.O.10), a blood stained red color bra (M.O.11) and a blood stained green underwear (M.O.12). The recovered material objects (M.O.1 to M.O.12) were all sent to the Judicial Magistrate, Musri through Form 91 (Ex.P.23 to Ex.P.25) and from there through the Judicial Magistrate, Musri were sent for forensic analysis. Also, the Inspector of Police (P.W. 26), sent the defacto complainant (P.W.1), Maruthamuthu S/o. Palaniyappan (P.W.3), Raja (P.W.4), Maruthamuthu S/o. Subbu Konar (P.W.5), and Maniraj (P.W.6) to the Judicial Magistrate, Musri for recording their respective statements (Ex.P.2 to Ex.P. 6) under Section 164 CrPC.

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3.8. Since, the murder of the deceased was within 8 months from the solemnization of her marriage, the Inspector of Police (P.W.26) sent a requisition to the Revenue District Officer (P.W.25) seeking for an enquiry in respect of the dowry harassment if any. Upon enquiry, the Revenue District Officer (P.W.25) issued a RDO report (Ex.P.18) concluding that the appellant harassed the deceased by seeking for monies from her parents. Hence, taking into account the RDO report (Ex.P.18), the Inspector of Police (P.W.26) placed the case file before the Superintendent of Police (P.W.27) for further investigation.

3.9. After taking up the case for investigation, the Superintendent of Police (P.W.27) examined the various witnesses including the independent witnesses, official witnesses, medical experts and forensic experts and recorded their respective statements. Thereafter, the Superintendent of Police (P.W.27) obtained a toxicology report (Ex.P.13), biology report (Ex.P.26), chemical report (Ex.P.27) and serology report (Ex.P.28). The biology report (Ex.P.26) concluded that blood was detected in the Material Objects (i.e. M.O.1 to M.O.5, M.O.7 & M.O.9 to M.O.12) and further, the serology report (Ex.P.28) concluded that the grouping test conducted on the blood samples obtained from the Material Objects (i.e. M.O.1 to M.O.5, M.O.7 & M.O.9 to M.O.12) was inconclusive. On the other hand, the toxicology report (Ex.P. 13) concluded that no poison was detected from the viscera i.e., internal organs.

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3.10. Based on the toxicology report (Ex.P.13), Dr. Ramesh (P.W.15) was once again reexamined by the Superintendent of Police (P.W.27) and thereby Dr. Ramesh (P.W.15) issued his medico legal opinion in the postmortem report (Ex.P14) wherein he opined that the deceased would appear to have died due to an injury to the vital blood vessels in her neck and further due to the shock from a hemorrhage. Lastly, upon completion of the investigation, the Superintendent of Police (P.W.27) altered the offences to included Section 304B, & 498A of IPC and Section 3(1) & 4 of the Dowry Prohibition Act vide an alteration report (Ex.P.29) and thereafter, filed a final report against the appellant for the offences under Section 302, 304B, & 498A of IPC and Section 3(1) & 4 of the Dowry Prohibition Act before the Judicial Magistrate, Musri.

4. The Judicial Magistrate, Musri took cognisance of the said final report and on appearance of the appellants, after complying with the provisions of 207 CrPC, the learned Judicial Magistrate committed the case to the Court of Sessions. The case was taken up as S.C. No. 01 of 2021 and made over to the trial Court. After hearing the appellants, the Trial Court framed charges against the appellants for having committed the offences under Section 302, 304B, & 498A of IPC and Section 3(1) & 4 of the Dowry Prohibition Act. When the charges were read over and explained to the appellants, they pleaded not guilty and sought to be tried.

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5. In order to prove the case, the prosecution examined 27 witnesses as P.W.1 to P.W.27 and marked 29 exhibits as Ex.P.1 to P.29 and 12 material objects as M.O.1 to M.O.12.

6. After examination of the prosecution witnesses, when the appellant was questioned under Section 313 of Cr.P.C. on the incriminating circumstances appearing against him, he denied the same as false and explained his presence at the place of occurrence by stating that owing to the deceased having had vomiting sensations he left to purchase medicines at a nearby medical shop and whilst he had returned therefrom, he had found the deceased murdered and hence in a fit of rage took the knife lying in his bedroom and injured his left arm. He further stated that thereafter, he had informed the police, who came to the place of occurrence, took him to the hospital and eventually framed him as the accused based on the pressure given by the parents and relatives of the deceased. However, the appellant did not examine any witnesses or mark any documents on his side to probabalise his explanation.

7. The Trial Court, after hearing the arguments on both sides, found the appellants guilty and convicted and sentenced them as tabulated at paragraph 2, *supra*, *vide* the impugned judgment and challenging his conviction and sentence, the instant criminal appeal has been filed by the accused i.e. appellant.

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8. Mr. M. Subash Babu, the learned Senior Counsel appearing for the appellant submitted as follows:

8.1. It is a case of circumstantial evidence and the prosecution has failed to establish its case beyond reasonable doubt. Further, the prosecution has also failed to establish the material circumstances to complete the chain of circumstances entitling them to draw the inference of guilt of the appellant.

8.2. The trial Court failed to take into consideration the material contradictions, embellishments and improvements in the evidence of the prosecutions witnesses.

8.3. Maniraj (P.W.6) and Ramasamy (P.W.7), the prosecutions witnesses, who have been examined to establish that the appellant was seen at the place of occurrence, immediately after the occurrence have turned hostile and thereby they have not supported the case of prosecution in this regard.

8.4. The Head Constable of Police (P.W.18) deposed that he got an information from the police station and based on the same he went to place of occurrence and after confirming the death of the deceased, he informed the same to

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the Inspector of Police (P.W.26). He further deposed that based on the information received, the Inspector of Police (P.W.26) came to the place of occurrence and thereafter, the body of the deceased was taken to the hospital. Whereas, the Inspector of Police (P.W.26) deposed that only after registering the FIR (Ex.P16) he came to know about the occurrence and visited the place of occurrence. Therefore, the investigation is highly doubtful.

8.5. The arrest of the appellant and the consequent confession and recovery thereof are highly doubtful and suspicious. In this regard, the trial Court failed to take into consideration the discrepancies in the evidence of the Village Administrative Officer (P.W.14) and the Inspector of Police (P.W.26) in respect of the preparation of the seizure mahazar (Ex.P.21) and the printing of the confession statement (Ex.P.8). Hence, the arrest, confession and recovery can not form a link in the chain of circumstance projected by the prosecution.

8.6. The appellant while being questioned under Section 313(5) of Cr.PC., had *vide* his statement categorically explained the circumstances under which the deceased was found dead in his house. Further, the appellant has also explained the circumstances under which he had sustained injuries in his hand. Whereas, the trial Court has failed to consider the same while finding the appellant guilty.

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8.7. Hence, the trial Court by ignoring the suspicious circumstances and by ignoring the fact that the prosecution has failed to prove its case beyond reasonable doubt has erred in convicting the appellant. Therefore, the appeal may be allowed and the impugned judgment of conviction and sentence of the appellants may be set aside.

9. *Per contra*, the learned counsel appearing for the respondent police submitted as follows:

9.1. It is a case of uxoricide. The marriage between the appellant and the deceased was solemnized on 06.06.2019 and the deceased was found dead within the matrimonial house on 04.02.2020. Though, there may be some minor contradictions and discrepancies in the evidence of prosecution witnesses, the same do not shake the credibility of the respective witnesses and therefore, they can not entitle the appellant to an acquittal of the charges against him. Reliance was placed on **Sushil Kumar Tiwari v. Hare Ram Sah** ***[2025 INSC 1061]***.

9.2. The occurrence was at 10.45 AM, and immediately thereafter, Ramkumar (P.W.8) has seen the appellant coming out of his house with a blood stained cloth wrapped around his left hand. Further, before leaving the place of occurrence, the appellant himself had contacted the Head Constable of Police (PW.

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18) and had informed him, of having murdered the deceased. The call from the appellant to the Head Constable of Police (PW.18) and the calls made by the Head Constable of Police (PW.18) thereof are all corroborated by the call data record (Ex.P.17).

9.3. The evidence of the prosecution witnesses are cogent and clear and that thereby, the prosecution has categorically proved that the appellant had committed the murder of the deceased within the walls of their matrimonial house. When the prosecution has established that the place of occurrence was in the privacy of the matrimonial house, the prosecution is entitled to the presumption under Section 114 r/w. 106 of the Evidence Act and therefore, the appellant is required to rebut the presumption that either by offering a plausible explanation or by letting in cogent evidence.

9.4. The appellant's explanation to the incriminating circumstances against him, runs contrary to the natural conduct of a prudent man and therefore, the same is not a plausible explanation. Once, it is clear that the appellant has come up with a false explanation that by itself is an incriminating circumstance which may very well be inferred against him. Reliance was placed on **Balvir Singh v. State of Uttarakhand** ***[(2023) 16 SCC 575]***.

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9.5. Hence, the trial Court had rightly appreciated the incriminating circumstances to convict and sentence the appellant. Therefore, the appeal may be allowed and the impugned judgment of conviction and sentence of the appellants may be set aside.

10. This Court gave its careful and anxious consideration to the rival contentions put forth by the learned counsel on either side and thoroughly scanned through the entire evidence available on record, including the impugned judgment of conviction and sentence.

11. Now what is to be seen is that whether the prosecution has proved the charges beyond reasonable doubt and whether the trial Court is right in appreciating the evidence on record to convict and sentence the appellant for the charged offences.

12. Admittedly, it is a case of uxoricide. The deceased is the wife of the appellant. The marriage between the appellant and the deceased was solemnized on 06.06.2019 and the death had occurred on 04.02.2020. The occurrence was within four walls of the matrimonial house. Though, some of the prosecution witnesses have not supported the case of the prosecution, the evidence of Ramkumar (P.W.8) and the ambulance driver (P.W.16)are cogent and clear to establish that the appellant

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came out of his house with a blood stained cloth wrapped around his left hand. The accident register (Ex.P.10) and the would certificate (Ex.P11) also establish that the blood stained cloth was wrapped around the appellant's left hand owing to a bleeding injury.

13. From the evidence of the Head Constable of Police (P.W.18), it is clear that immediately after the occurrence, the appellant informed the Head Constable of Police (P.W.18) that he had murdered the deceased and based on such information, the Head Constable of Police (P.W.18) went to the place of occurrence and found the body of the deceased in the bedroom of the appellant's house. Further, as per the evidence of Head Constable of Police (P.W.18), he was not aware of the appellant's house's location and thereby he had reached near the farmers market and called the appellant to ascertain the appellants. The evidence of the Head Constable of Police (P.W.18) in this regard is well corroborated by the Call Data Records (Ex.P.17), wherein the exchange of all the calls between the appellant and the Head Constable of Police (P.W.18) are categorically reflected.

14. Therefore, the evidence of Ramkumar (P.W.8), the ambulance driver (P.W.16), the Head Constable of Police (P.W.18) and the exhibited accident register (Ex. P10), wound certificate (Ex.P11) and Call Data Records (Ex.P.17) are more than sufficient to prove that the deceased was murdered within the privacy of the four

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walls of matrimonial house and that immediately after the occurrence, the appellant was present outside the matrimonial house with bleeding injuries. Hence, when the prosecution has established that the occurrence was within the privacy of the four walls of the matrimonial house in which the appellant ordinarily resides, he is cast with the burden of explaining the incriminating circumstances established by the prosecution.

15. In this regard, Section 101 & 106 of the Indian Evidence Act would be relevant. Section 101 read in consonance with its illustration (a) provides that in criminal cases the burden of proof is on the prosecution. Section 106 is an exception to the Section 101. Section 106 provides that when any fact is within the specific knowledge of accused, the burden of proving that fact is upon him. However, Section 106 is not intended to relieve the prosecution of its duty to discharge the burden of proof, but on the contrary, would come to the aid of prosecution to meet certain exceptional cases where it would be impossible or at any rate disproportionally difficult for the prosecution to establish the facts which are especially within the knowledge of the accused and which the accused can prove without difficulty.

16. One such common case where Section 106 would come to the aid of the prosecution is where the husband has been charged of having murdered his wife

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within the privacy of the four walls of the matrimonial house. In such a case where, the prosecution has established through cogent evidence that the offence took place within the four walls of a house wherein the husband had all the opportunity to commit the offence at the time and in the circumstances of his choice, section 106 would very well come to the aid of the prosecution. Considering that the present case, revolves around similar facts, Section 106 would very well apply to the facts and circumstances of the present case.

17. Having found thus, it would be useful to turn to **State of M.P. v. Balveer Singh** ***[(2025) 8 SCC 545]*** wherein the Supreme Court while dealing with a case, wherein, the husband had murdered his wife and cremated her in his field dealt with the applicability of Section 106 and held that Section 106 would apply to cases where the prosecution has succeeded in proving the facts from which a reasonable inference can be drawn regarding the existence of certain other facts, unless the accused by virtue of his special knowledge regarding such facts, has offered an explanation which might drive the court to draw a different inference. The relevant extract of **Balveer Singh, Supra** is as follows;

> **77.** Section 106 of the Evidence Act referred to above provides that when any fact is especially within the knowledge of any person, the burden of proving that fact is upon him. The word "especially" means facts that are or exceptionally within the knowledge of the accused. The ordinary rule that applies to the criminal trials that the onus lies on the prosecution to prove the guilt of the accused is not in any way modified by the rule of facts embodied in Section 106 of the Evidence Act. Section 106 of the Evidence Act is an exception to Section 101 of

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the Evidence Act. Section 101 with its Illustration (a) lays down the general rule that in a criminal case the burden of proof is on the prosecution and Section 106 is certainly not intended to relieve it of that duty. On the contrary, it is designed to meet certain exceptional cases in which it would be impossible or at any rate disproportionately difficult for the prosecution to establish the facts which are, "especially within the knowledge of the accused and which, he can prove without difficulty or inconvenience".

... 81. In Trimukh Maroti Kirkan v. State of Maharashtra [Trimukh Maroti Kirkan v. State of Maharashtra, (2006) 10 SCC 681 : (2007) 1 SCC (Cri) 80] , this Court was considering a similar case of homicidal death in the confines of the house. The following observations are considered relevant in the facts of the present case: (SCC pp. 690-91 & 694, paras 14-15 & 22)

> "... 15. Where an offence like murder is committed in secrecy inside a house, the initial burden to establish the case would undoubtedly be upon the prosecution, but the nature and amount of evidence to be led by it to establish the charge cannot be of the same degree as is required in other cases of circumstantial evidence. The burden would be of a comparatively lighter character. In view of Section 106 of the Evidence Act there will be a corresponding burden on the inmates of the house to give a cogent explanation as to how the crime was committed. The inmates of the house cannot get away by simply keeping quiet and offering no explanation on the supposed premise that the burden to establish its case lies entirely upon the prosecution and there is no duty at all on an accused to offer any explanation.
>
> ... 22. Where an accused is alleged to have committed the murder of his wife and the prosecution succeeds in leading evidence to show that shortly before the commission of crime they were seen together or the offence takes place in the dwelling home where the husband also normally resided, it has been consistently held that if the accused does not offer any explanation how the wife received injuries or offers an explanation which is found to be false, it is a strong circumstance which indicates that he is responsible for commission of the crime."

... 92. Section 106 of the Evidence Act would apply to cases where the prosecution could be said to have succeeded in proving facts from which a reasonable inference can be drawn regarding guilt of the accused.

93. The presumption of fact is an inference as to the existence of one fact from the existence of some other facts, unless the truth of such inference is disproved.

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94. To explain what constitutes a prima facie case to make Section 106 of the Evidence Act applicable, we should refer to the decision of this Court in Mir Mohammad [State of W.B. v. Mir Mohammad Omar, (2000) 8 SCC 382 : 2000 SCC (Cri) 1516], wherein this Court has observed in paras 36 and 37, respectively, as under: (SCC p. 393)

> "36. In this context we may profitably utilise the legal principle embodied in Section 106 of the Evidence Act which reads as follows: 'When any fact is especially within the knowledge of any person, the burden of proving that fact is upon him.'
>
> 37. The section is not intended to relieve the prosecution of its burden to prove the guilt of the accused beyond reasonable doubt. But the section would apply to cases where the prosecution has succeeded in proving facts from which a reasonable inference can be drawn regarding the existence of certain other facts, unless the accused by virtue of his special knowledge regarding such facts, failed to offer any explanation which might drive the court to draw a different inference."

... 96. Cases are frequently coming before the courts where the husbands, due to strained marital relations and doubt as regards the character, have gone to the extent of killing the wife. These crimes are generally committed in complete secrecy inside the house and it becomes very difficult for the prosecution to lead evidence. No member of the family like in the case on board, even if he is a witness of the crime, would come forward to depose against another family member.

97. If an offence takes place inside the four walls of a house and in such circumstances where the accused has all the opportunity to plan and commit the offence at the time and in the circumstances of its choice, it will be extremely difficult for the prosecution to lead direct evidence to establish the guilt of the accused. It is to resolve such a situation that Section 106 of the Evidence Act exists in the statute book. In Trimukh Maroti Kirkan [Trimukh Maroti Kirkan v. State of Maharashtra, (2006) 10 SCC 681 : (2007) 1 SCC (Cri) 80], this Court observed that a Judge does not preside over a criminal trial merely to see that no innocent man is punished. The Court proceeded to observe that a Judge also presides to see that a guilty man does not escape. Both are public duties. The law does not enjoin a duty on the prosecution to lead evidence of such character, which is almost impossible to be led, or at any rate, extremely difficult to be led. The duty on the prosecution is to lead such evidence, which it is capable of leading, having regard to the facts and circumstances of the case.

18. Although, the facts of the present case are similar to that of **Balveer Singh**, *Supra* in respect of the murder having taken place within the privacy of the

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four walls of the matrimonial house, it is still incumbent upon this Court to satisfy itself as to, whether, the prosecution has proved the foundational facts from which a reasonable inference of guilt of the appellant may be drawn. Hence, being guided by **Balveer Singh**, *Supra* this Court has critically examined the evidence on record, to find that the following foundational facts have been categorically established by the prosecution to enable this Court to draw a reasonable inference of guilt of the appellant;

18.1. At the cost of repitition, the prosecution has examined the defacto complainant (P.W.1), Kannammal (P.W.2), Maruthamuthu S/o. Palaniyappan (P.W.3), Raja (P.W.4), and Maruthamuthu S/o. Subbu Konar (P.W.5), to establish that the marriage between the appellant and the deceased was solemnized on 06.06.2019 and that the death of the deceased was within 8 months from the date of solemnization of marriage. Further, through these witnesses the prosecution has also established that the appellant was working in Singapore before the marriage and after the marriage, he was unemployed and that therefore, the deceased asked the appellant as to his unemployment and thereby there were various quarrels between the said couple. Lastly, from the evidence of the defacto complainant (P.W.1) and Kannammal (P.W. 2), the prosecution has also established that the defacto complainant (P.W.1) received a call from the deceased at about 8:00AM on 04.02.2020 whereby she stated that the appellant threatened her for monies to enable him to go to Canada.

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18.2. The prosecution has examined the Head Constable of Police (PW.18) and exhibited the call data record (Ex.P.17) to establish that the appellant himself had contacted the Head Constable of Police (PW.18) and had informed him, of having murdered the deceased. Further, the evidence of the Head Constable of Police (P.W.18) also establishes that the body of the deceased was found in the bedroom of the appellant's house. Moreso, the evidence of the ambulance driver (P.W.16) also corroborates that he observed that the deceased was dead in the bedroom of the appellant's house.

18.3. As already found above, the prosecution has examined Ramkumar (P.W. 8) and the ambulance driver (P.W.16) to establish that immediately after the occurrence the appellant came out of his house with a blood stained cloth wrapped around his left hand. Further, the evidence of Dr. Ramesh (P.W.15) coupled with the exhibited accident register (Ex.P.10) and would certificate (Ex.P11) would also go onto establish that the blood stained cloth was wrapped around the appellant's left hand owing to a bleeding injury which was simple in nature.

18.4. The prosecution has examined Dr. Ramesh (P.W.15) and exhibited the postmortem report (Ex.P12) and the medico legal opinion (Ex.P14) to establish that the deceased would appear to have died due to an injury to the vital blood vessels in

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her neck and further due to shock from a hemorrhage. The exhibited postmortem report (Ex.P12) and the medico legal opinion (Ex.P14) also establish that the body of the deceased was found with a fully cut trachea and was further found with cut blood vessels, tendons and nerves nearby the hyoid region, thereby the prosecution has established that the deceased was murdered with a sharp object.

18.5. The prosecution has examined the Village Administrative Officer (P.W. 14) and the Inspector of Police (P.W.26), exhibited the voluntary confession statement (Ex.P.8) and seizure mahazar (Ex.P.9) and cited a blood stained knife (M.O.1), a blood stained dhoti (M.O.2), a blood stained black color pant (M.O.3) and a blood stained grey color t-shirt (M.O.4) to establish that based on the appellant's confession, the Inspector of Police (P.W.26) recovered the blood stained murder weapon and the blood stained clothes of the appellant from a bush situated nearby to the house opposite to that of the appellant's house.

19. This Court having satisfied itself that the prosecution has established the foundational facts, this Court is inclined to draw an inference of guilt of the appellant from the established facts and thereby shift the burden on the appellant to explain what had actually happened on the day and date of the occurrence. Having shifted the burden, it is only left for us to test the appellant's explanation to the incriminating circumstances, to see, whether, the same might drive this court to draw

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a different inference. On perusal of the appellant's explanation, this Court finds that according to the appellant, the deceased was having vomiting sensations and hence he left to purchase medicines at a nearby medical shop and whilst he had returned therefrom, he had found the deceased murdered. Further, according to the appellant, on seeing his wife murdered, in a fit of rage took the knife lying in his bedroom and injured his left arm. This explanation however seems to be contrary to the natural conduct of a prudent man and thereby does not seem plausible to this Court. Further, when it is the evidence of the Head Constable of Police (PW.18) that the appellant had voluntarily confessed to have having murdered the deceased and more specifically, when, the call details record (Ex.P.17) corroborate the exchange of calls in this regard, the appellant ought to have disproved the same by adducing cogent evidence to the contrary. However, when, it is the specific claim of the appellant that he had visited a nearby medical shop, he ought to have brought forth his evidence to establish the same. But for reasons best known to him he has refrained from doing so. Therefore, when the appellant has chosen not to bring forth the evidence available with him, this Court does not find the appellant's explanation to be plausible and thereby this Court is not incline to draw an inference which is different from that of his guilt.

20. Lastly, though, the learned senior counsel for the appellant has drawn this Court's attention to some minor discrepancies in the evidence of the prosecution

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witnesses, those discrepancies neither go to the root of the matter nor shake the basic version of the prosecution witnesses and therefore, they can not go to the aid of the appellant. It was in this regard that the learned counsel appearing for the respondent police relied on **Sushil Kumar Tiwari**, *Supra* wherein the Supreme Court has held that natural variations, errors and inconsistencies are not to be elevated to the standard of a reasonable doubt or to hold that the prosecution has failed to prove its case. Although, **Sushil Kumar Tiwari**, *Supra* was rendered in the context of a case relating to the trial for the offences under the POCSO Act, where the prosecution would enjoy the benefit of statutory presumption, the ratio therein has been consistently applied in various murder cases including that of **State of U.P. v. M.K. Anthony** ***[(1985) 1 SCC 505]***, **Prithu alias Prithi Chand v. Sate of Himachal Pradesh** ***[(2009) 11 SCC 588]*** and **State of M.P. v. Chhaakki Lal** ***[(2019) 12 SCC 326]***. Therefore, when the evidence of the prosecution witnesses [i.e. the defacto complainant (P.W.1), Kannammal (P.W.2), Maruthamuthu S/o. Palaniyappan (P.W.3), Raja (P.W.4), and Maruthamuthu S/o. Subbu Konar (P.W.5) Ramkumar (P.W.8), Dr. Ramesh (P.W.15) the ambulance driver (P.W.16), the Head Constable of Police (P.W. 18)] having a ring of truth, this Court is not inclined to do away with their evidence on the basis of the minor discrepancies pointed out by the learned senior counsel for the appellant.

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21. Taking into consideration, the facts and circumstances of the case, the law involved and in view of the discussions and reasons stated above on the overall analysis of the evidence on record, we have come to the irresistible conclusion that the prosecution has established the incriminating circumstances beyond all reasonable doubt, to enable this Court to draw an inference of guilt of the appellant which has not been sufficiently rebutted by him. Therefore, the trial Court was right in convicting and sentencing the appellant.

22. In view of the above, this criminal appeal is dismissed by confirming the conviction and sentence imposed on the appellant in SC No. 01 of 2021 dated 30.04.2024 by the Sessions Judge, Mahila Court, Tiruchirapalli.

[A.D.J.C.,J.] [B.M.,J]
01 .09.2026

Index : Yes/No
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To

1.The Sessions Court, Fast Track Mahila Court, Srivilliputhur

2.The Inspector of Police
Watrap Police Station,
Virudhunagar District

3.The Additional Public Prosecutor
Madurai Bench of Madras High Court,
Madurai

4.The Section Officer
Criminal Section (Records)
Madurai Bench of Madras High Court
Madurai.

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A.D.JAGADISH CHANDIRA, J.
and
B.MURUGESAN, J.

aav

Pre Delivery Judgment made
in
Crl.A(MD) No.561 of 2024

01.09.2026

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